

1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”).) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court here would exercise its inherent authority to issue a stay pending the completion of binding arbitration.

Conclusion

Defendant’s motion to compel arbitration is granted. The Court orders the Parties to submit their dispute to arbitration in accordance with the Important Arbitration Disclosures section in the subject Lease Agreement. The Court orders this matter to be stayed in full, pending conclusion of the arbitration.

The court sets a Case Management Conference (CMC) for the purpose of ascertaining the status of the arbitration for Monday, December 7, 2026, in Dept. 32 at 8:30 a.m. Parties are ordered to file a joint statement on the status of the arbitration, specifically to include confirming whether or not the arbitration is still in progress, and if the arbitration is continuing indicating a preference for a continued CMC in either 6 or 9 months. The joint statement is due to be filed 10 court days prior to the CMC. Parties may appear at the CMC by Zoom.

9. 9:00 AM CASE NUMBER: C25-03095
CASE NAME: WELLS FARGO BANK, NATIONAL ASSOCIATION VS. ROSEWOOD COMMONS
PROPERTY OWNER, LLC
*HEARING ON MOTION IN RE: APPOINTMENT OF RECEIVER
FILED BY: WELLS FARGO BANK, NATIONAL ASSOCIATION
TENTATIVE RULING:

Plaintiff’s Motion for Appointment of Receiver is granted. The Court approves the nomination of David Kieffer to be the Receiver in this action. The Court will sign and file the Proposed Order.

10. 9:00 AM CASE NUMBER: C25-03386
CASE NAME: CECILY TAYLOR VS. STEVE SMITH
*HEARING ON MOTION IN RE: DISQUALIFY COUNSEL
FILED BY: TAYLOR, CECILY
TENTATIVE RULING:

Before the Court is Plaintiff Cecily Taylor’s Motion to Disqualify Counsel.